

CHAPTER 13

An Act to make provision, for a limited period, to continue the Festival Pleasure Gardens in Battersea Park ; and for purposes connected therewith.

[13th March 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of the two next following subsections shall have effect for the purpose of enabling the Festival Pleasure Gardens in Battersea Park to be continued during the period ending with the month of November, nineteen hundred and fifty-six: Continuance of Festival Pleasure Gardens.

Provided that—

- (a) the Minister, after consultation with the County Council may by order made not later than the fifteenth day of October, nineteen hundred and fifty-three direct that the said period shall come to an end with the month of November in that year;
- (b) if before the sixth day of October in that year the County Council request in writing that the Minister shall exercise his powers under the last foregoing paragraph, the Minister shall make an order accordingly.

(2) The power of the Company, and any person appointed by the Company, under paragraphs (a) and (b) of subsection (1) of section one of the Festival of Britain (Supplementary Provisions) Act, 1949, to take possession of and hold lands, and to carry out works, shall without further authorisation be exercisable in relation to the Festival Pleasure Gardens, and be deemed as from the twelfth day of November, nineteen hundred and fifty-one to have been so exercisable, subject to such limitation of time and provisions as to reinstatement as are provided in section three of that Act as amended by this Act and subject to such terms and conditions (including terms as to payment by the Company for possession of the land) as may be agreed between the County Council and the Company. 12, 13 & 14 Geo. 6. c. 102.

(3) The enactments specified in the Schedule to this Act shall have effect, and except in so far as is therein otherwise expressly provided be deemed always to have had effect, subject to the provisions specified in that Schedule.

(4) Nothing in the foregoing provisions of this section or in the Schedule to this Act shall be construed as requiring that the Festival Pleasure Gardens shall be open continuously until the end of the period specified in subsection (1) of this section.

(5) The Minister, after consultation with the County Council and the Company, may before the end of the said period by order exclude from the Gardens any part of the site thereof with a view to its being reinstated and made available to the public as part of Battersea Park.

(6) The Minister, after consultation with the County Council and the Company, may by order provide that during such part as may be specified in the order of any period while the Festival Pleasure Gardens are not open such part of the site thereof as may be so specified shall be temporarily available to the public for use as part of Battersea Park, subject however to such restrictions (if any) as may be imposed by the order on use of any specified description.

(7) Any order under the last foregoing subsection may be varied or revoked by a subsequent order made in the like manner and subject to the like provisions.

Short title and
interpretation.

2.—(1) This Act may be cited as the Festival Pleasure Gardens Act, 1952.

(2) In this Act and in any Act thereby amended the expression “the Festival Pleasure Gardens” means the whole or any part of the pleasure gardens (including the fun fair) provided at any time before the end of the period specified in subsection (1) of the last foregoing section on land enclosed by virtue of subsection (1) of section one of the Festival of Britain (Supplementary Provisions) Act, 1949; and other expressions used in the said Act of 1949 and in this Act have the same meanings in this Act as in that Act.

Section 1.

SCHEDULE

AMENDMENT OF ENACTMENTS

The Public Works (Festival of Britain) Act, 1949 (12 & 13 Geo. 6. c. 26)

Subsection (7) of section one shall as from the passing of this Act have effect as if the words “or the landing stages” were omitted and as if at the end thereof there were inserted the words “or to use the landing stages so authorised except to such extent and subject to such conditions as may be determined by byelaws under section seven of the Festival of Britain (Supplementary Provisions) Act, 1949, as amended by the Festival Pleasure Gardens Act, 1952, or (subject to such byelaws) as may from time to time be determined by the Council”.

Subsection (1) of section six shall have effect, in relation to anything certified by the Minister as required for the purposes of the Festival Pleasure Gardens, as if for the words "the closing of the exhibition" there were substituted the words "the end of the period specified in subsection (1) of section one of the Festival Pleasure Gardens Act, 1952," and as if for the reference to the Minister of Transport there were substituted a reference to the Minister; and subsection (4) of section eleven shall be construed accordingly.

In subsection (6) of section seven, as extended by subsection (2) of section five of the Festival of Britain (Supplementary Provisions) Act, 1949, for the reference to the closing of the gardens there shall be substituted a reference to the end of the period specified in subsection (1) of section one of this Act.

The Festival of Britain (Supplementary Provisions) Act, 1949
(12, 13 & 14 Geo. 6. c. 102)

In section one, in subsection (3) for the words "the gardens" there shall be substituted the words "the Festival Pleasure Gardens".

In section three, for the words "the appointed day", in each place where they occur, there shall be substituted the words "the end of the period specified in subsection (1) of section one of the Festival Pleasure Gardens Act, 1952," and for the words "the gardens", wherever they occur, there shall be substituted the words "the Festival Pleasure Gardens".

At the end of subsection (1) of the said section three there shall be added "or by virtue of subsection (2) of section one of the said Act of 1952:

Provided that in relation to any land excluded by order under subsection (5) of section one of the Festival Pleasure Gardens Act, 1952, the foregoing provisions of this subsection and the provisions of subsection (4) of this section shall have effect with the substitution for the references to the end of the period therein mentioned of references to the date on which the land is excluded as aforesaid."

In subsection (4) of the said section three for the words "the enclosure" there shall be substituted the words "the keeping enclosed".

In section four, in subsection (1) after the words "the execution", in the second place in which those words occur, there shall be inserted the words "before that day", and in subsection (2) for the words from "the end of the period" to "the period as extended" there shall be substituted the words "the passing of the Festival Pleasure Gardens Act, 1952,".

In section five, in subsections (1) and (2), for the words "the gardens", in each place where they occur, there shall be substituted the words "the Festival Pleasure Gardens", at the end of the said subsection (2) there shall be added the words "or by virtue of subsection (2) of section one of the Festival Pleasure Gardens Act, 1952,"

and subsections (3) and (4) of the said section five shall not authorise any act or omission which would not have been authorised if this Act had not been passed.

Subsection (2) of section six shall apply—

- (a) to all works (as defined in that section) certified by the Minister to be required for the purposes of the Festival Pleasure Gardens, other than such exempted works as are specified in paragraph (a) of subsection (3) of that section so long as exempted as therein mentioned,
- (b) to all entertainments of any of the descriptions specified in paragraphs (a) to (d) of subsection (4) of that section, being entertainments provided in the Festival Pleasure Gardens before the end of the period specified in subsection (1) of section one of this Act and certified by the Minister to be provided for the purposes of the Festival Pleasure Gardens.

Subsection (6) of section seven shall not prevent the making of byelaws, or apply to byelaws made, under subsection (2) of that section so far as they relate to the festival landing stage provided at Battersea Park or under subsection (3) thereof so far as they operate for determining the priority to be accorded to persons or vessels using that landing stage or any description of such persons or vessels; and as from the passing of this Act subsection (3) of the said section seven shall apply to any festival landing stage maintained at the exhibition site as if it were a landing stage in the River Thames not being a festival landing stage.

In section ten for the words “the gardens” there shall be substituted the words “the Festival Pleasure Gardens”.

In section eleven, in subsection (2), in the definition of the expression “the Minister” after the words “this Act” there shall be inserted the words “or of the Festival Pleasure Gardens Act, 1952,”; and the Festival of Britain (Appointment of Minister) (No. 3) Order, 1951 shall, but without prejudice to the subsequent variation or revocation thereof, have effect as if it appointed the Minister of Works to be the Minister for the purposes of the provisions of this Act.

The Festival of Britain (Sunday Opening) Act, 1951
(14 & 15 Geo. 6. c. 14)

In section one, in subsection (3) paragraph (a) shall be omitted, and in subsection (5) for the words “the festival gardens so referred to” there shall be substituted the words “the Festival Pleasure Gardens”.
